

Pinela v. Neiman Marcus Group, Inc. (2015) 238 Cal.App.4th 227, 254, to argue a similar “saving clause” was found to constitute substantive unconscionability because a court or arbitrator applying a shorter private statute of limitations “would be illegal or unconscionable under applicable law” is misguided. The provision therein left the decision to the arbitrator. (*Id.*, at pp. 253-254.) The arbitration agreement in this case provides that the statute will govern. And as argued by Defendant in the reply, the provision does not shorten any statutorily provided limitations period.

Third, Plaintiff argues that claims for unlawful discrimination and harassment based on sex are expressly non-arbitrable under federal law. However, the provision has an exception. “Except as provided herein, it covers all claims (‘Covered Claims’) arising out of Employee’s application or candidacy for employment, employment with Company and/or the termination thereof, including, but not limited to, . . . claims for unlawful discrimination and/or harassment (including, but not limited to, race, religious creed, color, national origin, ancestry, physical disability, mental disability, gender identity or expression, genetic information, medical condition, marital status, age, pregnancy, sex or sexual orientation) to the extent allowed by law[.]” (Luna Decl., ¶10, Exh. C at p. 1 [emphasis].) Because of this carve-out, Plaintiff’s argument is not persuasive.

Fourth, Plaintiff argues that the agreement includes an indefinite term. Plaintiff relies on *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 325-326, which found the trial court did not err in holding the duration of the arbitration agreement was substantively unconscionable because the agreement stated: “it ‘shall survive the termination of Employee’s employment, and may only be revoked or modified in a written document that expressly refers to the “Agreement to Arbitrate Claims” and is signed by the President of the University.’”

However, here, Plaintiff highlights no similar provision in the arbitration agreement. It does state that “this Agreement shall survive the termination of Employee’s employment.” (Luna Decl., ¶10, Exh. C at p. 2.) However, it also states that “Covered Claims must be filed within one year of the date the dispute first arose, or within one year of the termination of employment, whichever occurs first, provided, however that if the Employee’s or Company’s Covered Claim arises under a statute providing for a longer time to file a claim, that statute shall govern.” (*Id.*, Exh. C at p. 1.) Thus, there is no indefinite term.

In totality, Plaintiff fails to establish any substantive unconscionability. In light of the very modest procedural unconscionability, the Court declines to hold the agreement unenforceable.

17. *Minguela, et al, v. American Quartz Max Corp.*, Case No. CIVSB2226990
Motion for Preliminary Approval of Class Action Settlement
5/11/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** this matter since insufficient notice was provided on the motion. Notice was filed with the Court on April 22, 2026, showing electronic service that same day.

Pursuant to Code of Civil Procedure, section 1005(b), “all moving and supporting papers shall be served and filed at least 16 court days before the hearing.” While the notice was filed with more than 16 *calendar* days’ notice, it was not filed with 16 *court* days’ notice. Thus, the matter must be continued to allow sufficient notice under the Code. While the Court is cognizant that this appears to be an unopposed motion, the Court made no order granting shortened notice.

Additionally, the Court needs an estimation of the number of PAGA aggrieved employees and an assessment of the reasonableness of the PAGA aspect of the settlement, neither of which appear to be included with the submitted papers. (See Settlement, ¶18.3 [simply asserting the parties’ belief that the PAGA settlement is reasonable].)
